2362-A

XIII

List 87

RULES GOVERNING THE GRANTING AND ISSUING OF PASSPORTS IN THE UNITED STATES.

1. AUTHORITY TO ISSUE.---Section 4075 of the REVISED STATUTES OF THE UNITED STATES, as amended by the Act of Congress approved June 14, 1902, provides that "the Secretary of State may grant and issue passports, and cause passports to be granted, issued, and verified in foreign countries by such diplomatic or consular officers of the United States, and by such chief or other executive officer of the insular possessions of the United States, and under such rules as the President shall designate and prescribe for and on behalf of the United States." The following rules are accordingly prescribed for the granting and issuing of passports in the United States:

2. TO WHOM PASSPORTS ARE ISSUED.--Section 4076 of the REVISED STATUTES OF THE UNITED STATES (U.S. Comp. Stat. 1901, 2735) provides that "no passport shall be granted or issued to, or verified for, any other persons than those owing allegiance, whether citizens or not, to the United States."

3. BY WHOM ISSUED AND REFUSAL TO ISSUE.--No one but the Secretary of State may grant and issue passports in the United States (Revised Statutes, Sections 4075, 4078) and he is empowered to refuse them in his discretion.

Passports are not issued by American diplomatic and consular officers abroad, except in cases of emergency; and a citizen who is abroad and desires to procure a passport must apply therefor through the nearest diplomatic or consular officer to the Secretary of State.

Applications for passports by persons in Porto Rico or the Philippines should be made to the Chief Executive of those Islands. The evidence required of such applicants is similar to that required of applicants in the United States.

4. FEE.--By Act of Congress approved March 23, 1888, a fee of one dollar is required to be collected for every citizens passport. That amount in currency or postal money order should accompany each application made by a citizen of the United States. Orders should be made payable to the Disbursing Clerk of the Department of State. Drafts or checks will not be accepted.

5. APPLICATIONS.--A person who is entitled to receive a passport, if within the United States, must submit a written application in duplicate, in the form of an affidavit, to the Secretary of State. The application should be made by the person to whom the passport is to be issued and signed by him, as it is not proper for one person to apply for another.

The affidavit must be made before a clerk of a Federal Court or of a State Court authorized by the Act of Congress of June 29, 1906, to naturalize aliens, within the jurisdiction of which the

applicant or his witness resides, and the seal of the court must be affixed; BUT IN ANY PLACE WHERE THERE IS A FEDERAL COURT THE AFFIDAVIT MUST BE MADE BEFORE A CLERK OF SUCH COURT. In any place where there is an agent of the Department of State, the Secretary of State may, in his discretion, require the application to be made before such agent. The clerk of court or agent of the Department of State before whom the application is made must mail it directly to the Department of State. The applicant must state from what point he intends to leave the United States, and the date of his intended departure, and also, if by a port of the United States, by what ship he intends to sail. Each application must be in the hands of the Department of State or its agent at least five days before departure from the United States.

If the applicant signs by mark, two attesting witnesses to his signature are required. The applicant is required to state the date and place of his birth, his occupation, the place of his permanent residence, and within what length of time he will return to the United States with the purpose of residing and performing the duties of citizenship. He is also required to state the names of the foreign countries which he expects to visit, and the objects of his visits thereto. The latter statement should be brief and general in form thus: "Commercial business." An applicant who states that he is going abroad on commercial business must support his application with a letter from the head of the firm or firms which he represents stating the names of the countries it is necessary for him to visit and the objects of his visits thereto. An applicant who is going abroad for any other purpose must satisfy the Department of State that it is imperative that he go and submit satisfactory documentary evidence substantiating his statement concerning the imperativeness of his proposed trip.

The applicant must take the oath of allegiance to the United States.

The application must be accompanied by a description of the person applying, and should state the following particulars, viz: Age,_____; Stature, _____, feet_____inches (English measure); forehead, _____; eyes,_____; nose,_____; mouth,_____; chin,_____; hair;_____; complexion,_____; face,_____; special identifying marks, if any (scars, birthmarks, etc.).

The application must also be accompanied by three photographs of the applicant, on thin paper, unmounted, and not larger in size than three by three inches. One must be attached to the back of each application by the clerk of the court or the Department's agent before whom it is made, with an impression of such officer's seal so placed as to cover part of the photograph but not the features,

and the other sent loose, to be attached to the passport by the Department. The loose photograph must be signed across its face, so as not to obscure the features, by the applicant, and the signature thereon must correspond to the applicant's signature affixed to the application. Photographs on cardboard or postcards will not be accepted.

The application must be supported by an affidavit from at least one credible witness that the applicant is the person he represents himself to be, and that the facts stated in the application are true to the best of the witness' knowledge and belief. This affidavit must be made before the clerk of court or the Department's agent before whom the application is executed and the witness must be an American citizen, who resides within the jurisdiction of the court or the Department's agent. The applicant or his witness must be known to the clerk of court or the Department's agent before whom the application is executed, or must be able to satisfy such officer as to his identity and the BONA FIDES of the applicant.

6. NATIVE CITIZENS.--An application containing the information indicated by rule 5 will be sufficient evidence in the case of a native citizen; except that a person born in the United States in a locality where births are not recorded will be required to submit a birth certificate with his application. If a birth certificate is not obtainable, the application should be supported by an affidavit of the physician who attended the birth, or affidavits of parents or other reputable persons having personal knowledge of the applicant's birth in this country.

Passports issued by the Department of State or its diplomatic or consular representatives are intended for identification and protection in foreign countries, and not to facilitate entry into the United States, immigration being under the supervision of the Department of Labor.

7. A PERSON BORN ABROAD WHOSE FATHER WAS A NATIVE CITIZEN OF THE UNITED STATES.-- In addition to the statements required by rule 5, his application must show that his father was born in the United States, resided therein, and was a citizen at the time of the applicant's birth. In such case, evidence of the father's birth in this country similar to that required in Section 6, above, should be submitted.

8. NATURALIZED CITIZENS.--In addition to the statements required by rule 5, a naturalized citizen must transmit his certificate of naturalization, or a duly certified copy of the court record thereof, with his application. It will be returned to him after inspection. He must state in his affidavit when and from what port he emigrated to this country, and, if possible, what ship he sailed on, where he has lived since his arrival in the United States, when and before what court he was naturalized, and that he is the identical person described in the certificate of naturalization.

The signature to the application should conform in orthography to the applicant's name as written in his certificate of naturalization, or an explanation of the difference should be submitted.

9. WOMAN'S APPLICATION.—If she is unmarried, in addition to the statements required by rule 5, she should state that she has never been married. If she is the wife or widow of a native citizen of the United States, the fact should be made to appear in her application, which should be made according to the form prescribed for a native citizen, whether she was born in this country or abroad. If she is the wife or widow of a naturalized citizen, in addition to the statements required by rule 5, she must transmit for inspection her husband's certificate of naturalization or a certified copy of the court record thereof, must state that she is the wife (or widow) of the person described therein, and must set forth the facts of his birth, emigration, naturalization, and residence, as required in the rules governing the application of a naturalized citizen. She should sign her own Christian name with the family name of her husband: (Thus, Mary Doe; not Mrs. John Doe).

A married woman's citizenship follows that of her husband. It is essential, therefore, that a woman's marital relations be indicated in her application for a passport, and that in the case of a married woman her husband's citizenship be established.

10. THE CHILD OF A NATURALIZED CITIZEN CLAIMING CITIZENSHIP THROUGH THE NATURALIZATION OF THE PARENT.— In addition to the statements required by rule 5, the applicant must state that he or she is the son or daughter, as the case may be, of the person described in the certificate of naturalization, which must be submitted for inspection, and must set forth the facts of emigration, naturalization, and residence, as required in the rules governing the application of a naturalized citizen.

11. A RESIDENT OF AN INSULAR POSSESSION OF THE UNITED STATES WHO OWES ALLEGIANCE TO THE UNITED STATES.— In addition to the statements required by rule 5, he must state that he owes allegiance to the United States, and that he does not acknowledge allegiance to any other government, and must submit affidavits from at least two credible witnesses having good means of knowledge in substantiation of his statements of birth, residence, and loyalty. No fee is required for the issuance by the Department of State of an insular passport.

12. EXPIRATION OF PASSPORT.— A passport expires six months from the date of its issuance. A new one will be issued upon a new application, accompanied by the old passport, and, if the applicant be a naturalized citizen, the old passport will be accepted in lieu of a certificate of naturalization, provided the application upon which the old passport was issued is found to contain sufficient information as to the naturalization of the applicant.

13. RENEWAL OF PASSPORT.--Passports issued by the Department of State, which have not expired, may be renewed by it for a period of six months upon the sworn applications of the holders; provided, that the holders are residing in the United States at the time they make their applications for renewal, that they intend to visit only those countries named in the passports which they hold, and that they show to the satisfaction of the Department of State that it is necessary for them to do so.

An application for the renewal of a passport must be in the form of an affidavit addressed to the Secretary of State. The affidavit must be made before a clerk of a Federal Court within the jurisdiction of which the applicant resides, and the seal of the court must be affixed; but, in any place where there is an agent of the Department of State, the Secretary of State may, in his discretion, require the application to be made before such agent. The clerk of court, or the agent of the Department of State before whom the application is made, must mail it directly to the Department of State.

The applicant must state that he is a loyal citizen of the United States, give the names of the foreign countries which he expects to visit, and explain the object and necessity of his proposed visits thereto. The same evidence as to the necessity of the applicant's going abroad will be required of a person applying for the renewal of his passport as that required by rule 5 of applicants for passports. The applicant must also state from what point he intends to leave the United States, and the date of his intended departure, and also, if by a port of the United States, by what ship he intends to sail. In addition, the applicant must submit a photograph of himself, which must correspond to the photographs attached to his passport and the application upon which it was issued. The photograph, which must be on thin paper and about three by three inches in size, must be attached to the application for renewal by the clerk of court or the agent of the Department of State before whom the application is made, and the seal of such officer must be impressed thereon.

No passport shallbe renewed more than twice. No fee is required by the Department of State for the renewal of a passport.

A person abroad holding a passport issued by the Department of State may have it renewed for a period of six months upon presenting it to a diplomatic or principal consular officer of the United States, when it is about to expire, with a sworn statement of the names of the countries which he expects to visit and the objects of his visits thereto.

14. WIFE, MINOR CHILDREN, and SERVANTS.--When the applicant is accompanied by his wife, minor children, and maid-servant, who is a citizen of the United States, it will be sufficient to state the fact,

giving their names in full, the dates and places of their births, and the allegiance of the servant, when one passport will suffice for all. In such case, however, three photographs of each person should accompany the passport application. For a man-servant or any other person in the party a separate passport will be required. A woman's passport may include her minor children and maid-servant under the above-named conditions.

(The term "maid-servant" does not include a governess, tutor, pupil, companion, or person holding like relation to the applicant for a passport.)

15. TITLES. -- Professional and other titles will not be inserted in passports.

16. BLANK FORMS OF APPLICATION.--They will be furnished by the Department free of charge to persons who desire to apply for passports. Supplies of blank applications are also furnished by the Department to clerks of courts and are held by the Department's agents.

17. ADDRESS.--Communications should be addressed to the Department of State, Bureau of Citizenship, and each communication should give the post-office address of the person to whom the answer is to be directed.

18. ADDITIONAL REGULATION.--The Secretary of State is authorized to make regulations on the subject of issuing and granting passports additional to these rules and not inconsistent with them.

To become effective May 1, 1918.

WOODROW WILSON

The White House,
17 April, 1918.

*INTRA T.--See, however, Department of State circular entitled "Special Restrictions Upon Travel in Belligerent Countries."